



CHAPTER 15.

An Act to make provision for the reinstatement in civil employment of certain persons who are, or have been, in the service of the Crown or in a civil defence force; and for purposes connected with the matter aforesaid. [21st March 1944.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Obligation to reinstate former employees.

1.—(1) Subject to the provisions of this Act, where a person to whom this Act applies whose war service ends after the commencement of this Act makes an application to his former employer to be taken into his employment, the former employer shall, so long as the application remains in force, be under an obligation to take the applicant into his employment—

Obligation of employers to reinstate former employees.

- (a) in the occupation in which the applicant was last employed by the former employer before the beginning of his war service and on terms and conditions not less favourable to him than those which would have been applicable to him in that occupation had he not become a person to whom this Act applies; or
- (b) if it is not reasonable and practicable that the applicant should be taken into employment in that occupation and on those terms and conditions, in the most favourable occupation and on the most favourable terms and conditions which are reasonable and practicable in his case.

(2) The said obligation shall be an obligation to take the applicant into employment as aforesaid at the first opportunity (if any) at which it is reasonable and practicable for the former employer so to do on or after such date as may be notified to him in accordance with section three of this Act as the date on which the applicant will be available for employment; and accordingly if the former employer, after giving reasonable notice thereof to the applicant, makes such employment as aforesaid available to him at the said first opportunity, his obligation shall be discharged:

Provided that—

(a) an opportunity for taking the applicant into his former employer's employment shall not be deemed for the purposes of this subsection to have arisen if—

(i) the former employer makes employment available to the applicant, but the applicant has, or reasonably believes that he has, reasonable cause for not taking it; and

(ii) the facts on which the applicant relies as constituting the reasonable cause are notified in writing to the former employer by him or by some person acting with his authority as soon as may be after he has been notified by the former employer that the employment is being made available to him; and

(b) in no case shall the former employer be under any obligation under this section to take the applicant into his employment after six months have elapsed from the end of the present emergency.

(3) Any notice to be given under the last preceding subsection by the former employer to the applicant shall, without prejudice to any other mode for the giving thereof, be deemed to have been duly given if it is sent to the applicant addressed to him at such address as may be provided by him for the purpose or, if no such address is so provided, at his last known place of abode.

2.—(1) An application under the preceding section—

(a) shall be of no effect unless it is made in writing;

(b) may be made either by the applicant or by some person acting with his authority.

(2) An application under the said section shall be of no effect unless it is made during the period beginning with the end of the applicant's war service and ending with the fifth Monday after the end thereof:

Mode of
making, time
for making
and duration
of applica-
tions for
reinstatement.

Provided that an application made after the end of the said period shall not be invalid by virtue of this subsection if the applicant was prevented from making it within that period by his sickness or other reasonable cause, and the application was made as soon as reasonably may be after the expiration of the said period.

(3) An application under the said section shall cease to have effect on the expiration of thirteen weeks from the date of the making thereof:

Provided that—

(a) while the application is still in force it may from time to time be renewed in writing by the applicant or by some person acting with his authority, and, if it is so renewed, shall not cease to have effect by virtue of this subsection until thirteen weeks from the date of the renewal; and

(b) if, at the time when the application would otherwise cease to have effect, proceedings for the determination of any question affecting the application are pending under the subsequent provisions of this Act, the application shall not cease to have effect by virtue of this subsection until fourteen days after those proceedings have ceased to be pending; and for the purposes of this proviso, proceedings shall not be treated as having ceased to be pending until the time for appealing has expired or, where an appeal is brought, until the appeal is decided or withdrawn.

(4) An application under the said section or any renewal of any such application may be made either directly to the former employer or, in the prescribed manner, at an employment exchange or any such other local office of the Minister or of the Ministry of Labour for Northern Ireland as may be appointed by the Minister or Ministry, as the case may be, and where any application or renewal is so made or given at such an exchange or local office, it shall be the duty of the Minister to take such steps as may be practicable to forward it to the former employer.

3.—(1) Where an application is made under section one of this Act, the applicant or some person acting with his authority shall, at or after the time of making the application, but not later than four weeks from the latest date allowed by the last preceding section for the making thereof, notify to the former employer in writing a date, not later than the expiration of the said four weeks, on which the applicant will be available for employment:

Duty of applicant to state date of availability for employment.

Provided that if, owing to his sickness or other reasonable cause, the applicant is not available for employment until

after the expiration of the said four weeks, the date to be so notified may be a date as soon as reasonably may be after the expiration of the said four weeks, and accordingly the notification shall not be invalid by reason only that it is given after the expiration of the said four weeks.

(2) The provisions of subsection (4) of the last preceding section shall apply to any notification under this section as they apply to applications under section one of this Act.

Obligation of
employers to
continue to
employ
reinstated
employees.

4.—(1) Where an applicant has been taken into the employment of his former employer in pursuance of section one of this Act, the former employer shall be under an obligation to employ the applicant for the following twenty-six weeks or so much thereof as is reasonable and practicable—

- (a) in an occupation not less favourable to him than that in which, and on terms and conditions not less favourable to him than those on which, the applicant is so taken into employment; or
- (b) if, at any time during the period for which he has under this section to be employed, it ceases to be reasonable and practicable for the applicant to be employed in that occupation and on those terms and conditions, in the most favourable occupation and on the most favourable terms and conditions which are thereafter for the time being reasonable and practicable in his case:

Provided that, if when the applicant last ceased to be employed by his former employer before the beginning of his war service he had been in the continuous employment of that former employer for a consecutive period of not less than fifty-two weeks, the preceding provisions of this section shall have effect as if for the reference to twenty-six weeks there were substituted a reference to fifty-two weeks.

(2) In computing the period of continuous employment mentioned in the proviso to the preceding subsection—

- (a) where the employment is in an undertaking, and any change has taken place in the person carrying on that undertaking or any other undertaking has become comprised in that undertaking, periods in the employment of the person for the time being carrying on the undertaking or the other undertaking, as the case may be, shall be treated as periods of employment by the former employer;
- (b) a person shall not be treated as otherwise than continuously employed by reason of any temporary absence from work.

5.—(1) It shall not be treated for the purposes of the preceding sections as reasonable and practicable for the former employer to take the applicant into his employment, or to employ him, either at all or in any particular occupation or on particular terms and conditions if it can only be done by discharging some other person who—

- (a) was employed by the former employer before the relevant date; and
- (b) had been so employed before the relevant date for a longer period than the applicant; and
- (c) was so employed in employment of a kind that was not less permanent in character than the applicant's employment,

or by refusing to take into employment, in accordance with section one of this Act, some such other person as aforesaid who is a person to whom this Act applies and has duly made an application under that section which is still in force.

In this subsection the expression "the relevant date" means the beginning of the applicant's war service, or where the other person as well as the applicant is a person to whom this Act applies, the beginning of the applicant's war service or the beginning of the other person's war service, whichever is the earlier.

(2) It shall not be treated for the purposes of the preceding sections as otherwise than reasonable and practicable for the former employer to take the applicant into his employment, or to employ him, either at all or in any particular occupation or on particular terms and conditions by reason only that it can only be done by discharging some other person who is not such a person as is mentioned in paragraphs (a), (b) and (c) of the preceding subsection; and this subsection shall apply whether or not the other person is a person to whom this Act applies, and whether or not he has been taken into the employment of the former employer in accordance with section one of this Act.

6.—(1) The persons to whom this Act applies are—

- (a) male persons who, after the twenty-fifth day of May, nineteen hundred and thirty-nine, enter upon a period of whole-time service in the armed forces of the Crown;
- (b) female persons who, after the said date, enter upon a period of whole-time service in any of the capacities mentioned in the First Schedule to this Act;
- (c) persons (whether male or female) who, after the tenth day of April, nineteen hundred and forty-one, enter

Persons to whom Act applies, and meaning of references to beginning and end of war service.

upon a period of whole-time service in a civil defence force within the meaning of the National Service Acts, 1939 to 1942, in consequence of an enrolment notice under those Acts.

(2) References in this Act to periods of war service, or the beginning or the end of the war service, of a person to whom this Act applies shall, subject to the provisions of section twelve of this Act, be construed as references to periods of whole-time service mentioned in subsection (1) of this section, and to the beginning and the end thereof.

Meaning of
expression
"former
employer."

7.—(1) Subject to the provisions of this section, the expression "former employer" in this Act means, in relation to a person to whom this Act applies, the employer by whom he was last employed within the period of four weeks immediately preceding the beginning of his war service.

(2) Where a person to whom this Act applies was last employed within the said period of four weeks in any undertaking, and (whether before or after the passing of this Act) any change takes place in the person carrying on that undertaking or that undertaking becomes comprised in any other undertaking, references in this Act to the former employer of that person shall be construed as references to the person for the time being carrying on that undertaking or that other undertaking, as the case may be:

Provided that, where the person in question was last employed as aforesaid in a branch or part of an undertaking which (whether before or after the passing of this Act) becomes, or becomes part of, some other undertaking, and either—

- (a) he has as a consequence become employed in that other undertaking; or
- (b) it is reasonable to suppose that he would as a consequence have become employed in that other undertaking if his employment had not been interrupted by his war service,

this subsection shall have effect as if that branch or part were itself an undertaking.

(3) Where—

- (a) by virtue of any provision made by or under any Act, employers of any class are required, in taking persons of any class into their employment (whether in all cases or not and whether absolutely or subject to exceptions), to restrict themselves to, or to give preference to, persons for the time being included in a specified pool or register; and

- (b) under the said provision, all persons included in that pool or register are in the employment of a specified body when not otherwise employed; and
- (c) the occupation in which a person to whom this Act applies was last employed before the beginning of his war service is such that the taking of him into his employment by the person who, but for the provision of this subsection, would be his former employer is affected by the said provision,

the said body shall, for the purposes of this Act, be deemed to be the former employer of that person.

*Determination of questions and enforcement of
preceding provisions.*

8.—(1) For the purposes of determining the questions and making the orders specified in the next succeeding section, such number of Committees (hereafter in this Act referred to as "Reinstatement Committees") shall be appointed as the Minister may determine.

Reinstatement
Committees,
umpire and
deputy
umpires.

(2) Every Reinstatement Committee shall consist of—

- (a) a chairman selected by the Minister from a panel constituted by him for the purposes of this section of persons to act as chairmen of Reinstatement Committees; and
- (b) one person selected by the Minister from a panel constituted as aforesaid of persons chosen to represent employers; and
- (c) one person selected by the Minister from a panel constituted as aforesaid of persons chosen to represent employed persons.

(3) The Minister may appoint such number of persons as he thinks fit as assessors to be available to Reinstatement Committees being persons who, in the opinion of the Minister, have expert knowledge as to any of the matters which are likely to fall to be considered by those Committees in exercising their jurisdiction under this Act.

An assessor shall not vote or otherwise be a party to any determination or order of a Reinstatement Committee.

(4) His Majesty may appoint an umpire and one or more deputy umpires for the purpose of hearing appeals from Reinstatement Committees.

9.—(1) A person who is or claims to be a person to whom this Act applies and claims that he has rights under this Act which are being or have been denied him, may, within the prescribed time, apply to a Reinstatement Committee for the

Jurisdiction of
Reinstatement
Committees.

determination of any question relating to his rights, if any, under this Act, and the Committee shall determine that question.

(2) Where the Committee are satisfied that default has been made by the former employer of the applicant in the discharge of his obligations under this Act, the Committee may make either or both of the following orders according as is in their opinion appropriate, having regard to all the circumstances of the case and the nature and extent of the default, that is to say,—

- (a) an order requiring employment to be made available to the applicant by his former employer on such date, in such occupation, on such terms and conditions and at such place as may be specified in the order, being employment which, in the opinion of the Committee, is, such as is required by this Act to be made available to the applicant;
- (b) an order requiring that there shall be paid to the applicant by way of compensation for any loss suffered or likely to be suffered by him by reason of the default a sum specified in the order, not exceeding in any event the amount of the remuneration which, in the opinion of the Committee, the applicant would, if the obligations imposed by this Act in relation to him had been duly discharged, have been entitled to receive from his former employer in respect of the period during which under this Act he has to be employed by his former employer.

(3) The provisions of the Second Schedule to this Act shall have effect in relation to orders made under the last preceding subsection.

Appeals from
Reinstatement
Committees.

10.—(1) An appeal may, within the prescribed time, be brought from any determination or order of a Reinstatement Committee, or from the refusal of such a Committee to make an order, to the umpire or a deputy umpire, as follows:—

- (a) at the instance of an organisation of employers of which the employer concerned was a member on the date on which the application was made to the Reinstatement Committee;
- (b) at the instance of an association of employed persons of which the applicant was a member on that date;
- (c) at the instance either of the employer concerned or of the applicant—

(i) without leave in any case in which the decision of the Committee is not unanimous; and

- (ii) with the leave of the Committee or, if the Committee refuse leave and an application for leave is made within the prescribed time to the umpire or a deputy umpire, with the leave of the umpire or a deputy umpire.

In this section, the expression "the employer" includes, in a case where different persons have at different periods been the former employer of the applicant, any person against whom an order was made by the Reinstatement Committee.

(2) On any such appeal, the umpire or deputy umpire may make any determination or order which a Reinstatement Committee might make under the provisions of this Act or may dismiss the appeal, and his decision shall be final; and in considering how to exercise his powers under this subsection, the umpire or deputy umpire shall, where there has been any change in the relevant facts since the date of the hearing before the Reinstatement Committee, have regard to the facts existing on the date of the hearing before him.

(3) The umpire or deputy umpire shall, when considering an appeal under this section, sit with two assessors appointed by the Minister:

Provided that where, on any such appeal, one or both of the assessors appointed to sit is or are absent, then, with the consent in writing of the parties, the umpire or deputy umpire may proceed to consider and determine the appeal without the other assessor or without either assessor, as the case may be.

11.—(1) Where an order has been made by a Reinstatement Committee or by the umpire or a deputy umpire on appeal that employment shall be made available to a person on a specified day and employment is not made available to him on that day in accordance with the order, the person against whom the order was made shall be liable on summary conviction to a fine not exceeding one hundred pounds, and the court by whom he is found guilty may order him to pay to the person to whom the employment should have been made available, by way of compensation for any loss suffered or likely to be suffered by him by reason of the offence, a sum specified in the order, not exceeding in any event the amount of the remuneration which, in the opinion of the court, that person would have been entitled to receive from his former employer if the order, and the obligation as to subsequent employment resulting from the order, had been complied with:

Provided that—

- (a) proceedings shall not be brought against any person for failure to comply with an order of a Reinstatement

ment Committee until the time allowed for appealing has expired or, where an appeal is brought, until the appeal is decided or withdrawn;

- (b) where the person against whom the order was made is no longer the former employer of the applicant at the date of the failure to comply with the order, it shall be a defence to him to prove that he took all reasonable steps to secure compliance with the order.

(2) Where an order has been made by a Reinstatement Committee or by the umpire or a deputy umpire on appeal for the payment to a person of any sum, that sum may, without prejudice to any other mode for the recovery thereof, be recovered from the person against whom the order is made summarily as a civil debt; but proceedings shall not be brought, whether summarily or otherwise, for the recovery of any such sum until the time allowed for appealing against the order has expired or, where an appeal is brought, until the appeal is decided or withdrawn.

(3) Save as provided in this section, no proceedings, whether civil or criminal, shall be brought against any person in respect of a failure to discharge an obligation imposed on him by or under the preceding provisions of this Act.

(4) Any officer authorised in that behalf by special or general directions of the Minister may institute on behalf of and in the name of any person to whom this Act applies civil proceedings for the recovery of any such sum as is mentioned in subsection (2) of this section, and in any such proceedings the court may make an order for the payment of costs by the officer as if he were a party to the proceedings:

Provided that the powers conferred by this subsection for the recovery of sums due to a person to whom this Act applies shall not be in derogation of any right of that person himself to recover such sums by civil proceedings.

Miscellaneous and General.

Special provisions as to re-enlistment, etc.

12.—(1) Subject to the provisions of this section, where a person to whom this Act applies whose war service has ended again enters (whether before or after the commencement of this Act) upon any such period of whole-time service as is mentioned in subsection (1) of section six of this Act, his previous period of war service shall be treated for the purposes of this Act as continuing without intermission until the end of his subsequent period of war service.

(2) Where (whether before or after the commencement of this Act) a person to whom this Act applies whose war service has ended performs whole-time services in consequence of a direction or written request made by or on behalf of the Minister or the Ministry of Labour for Northern Ireland or

performs whole-time services which he was released or discharged to perform, the period during which he performs those whole-time services shall be treated for the purposes of subsection (1) of this section as if it were a further period of service such as is mentioned in subsection (1) of section six of this Act, and subsection (1) of this section shall have effect accordingly:

Provided that the Minister may, either generally or in relation to any specified class of case, by order appoint a limiting date for the purposes of this subsection, and, where a limiting date is so appointed, a person's war service shall not be treated for the purposes of this Act as continuing beyond that date.

(3) The preceding provisions of this section shall not apply in relation to any person where (whether before or after the commencement of this Act) the interval between the two periods of war service exceeds twenty-six weeks or where (whether before or after the commencement of this Act) during the said interval either—

- (a) the period specified in subsection (2) of section two of this Act for making an application under section one of this Act has expired since the end of the first of his two periods of war service without his having applied to his former employer for employment; or
- (b) his former employer has made available to him such employment as is specified in subsection (1) of section one of this Act and he has either failed without reasonable excuse to take that employment or has left it otherwise than to undertake a further period of war service.

13.—(1) This Act shall have effect in relation to a person to whom this Act applies whose war service ended not earlier than twenty-six weeks before the commencement of this Act as if his war service had ended immediately after the commencement of this Act:

Application of Act to certain persons whose war service ended before the commencement thereof.

Provided that, where the person in question is in the employment of his former employer at the commencement of this Act, he shall be treated for the purposes of this Act as having entered that employment immediately thereafter in pursuance of an application in that behalf duly made by him under section one of this Act.

(2) This section shall not apply in relation to any person where, before the commencement of this Act, proceedings have been instituted under subsection (1) of section fourteen of the National Service (Armed Forces) Act, 1939, for an offence alleged to have been committed thereunder in relation to him within the twenty-six weeks immediately preceding the

2 & 3 Geo.6.
c. 81.

commencement of this Act; and no proceedings shall be instituted under the said subsection (1) after the commencement of this Act for an offence alleged to have been committed within the said twenty-six weeks.

Prevention of
evasion.

14. Any person (hereafter in this section referred to as "the employer") who, with intent to evade the provisions of this Act, terminates the employment of any person employed by him (hereafter in this section referred to as "the employee") who is to become a person to whom this Act applies shall be liable on summary conviction to a fine not exceeding one hundred pounds; and the court by whom the employer is found guilty may order him to pay to the employee a sum not exceeding twenty-six weeks remuneration at the rate at which the remuneration of the employee was last payable to him by the employer before the beginning of the employee's war service.

Waiver, etc.

15.—(1) The provisions of this Act requiring a person to whom this Act applies, as a condition of obtaining his rights thereunder, to make and renew an application to his former employer to be taken into his employment and to notify a date on which he will be available for employment are for the protection of the former employer and accordingly can be waived or dispensed with by the former employer, either in whole or in part and either expressly or by conduct:

Provided that, except where the applicant has in fact been taken into the employment of his former employer since the end of his war service, any requirement that anything should be done in writing shall not be deemed to be capable of being waived or dispensed with by the former employer otherwise than in writing.

(2) Where—

- (a) a person to whom this Act applies has made an application under section one of this Act to be taken into the employment of his former employer and is so taken into employment before that application has expired; or
- (b) a person to whom this Act applies is taken into the employment of his former employer under such circumstances that such an application has been waived or dispensed with,

and in either case the employment is not such as is specified in subsection (1) of section one of this Act, the rights of the said person against his former employer shall not be less than they would have been if the employment into which he is taken were such employment.

16.—(1) The Minister may make regulations—

Regulations.

- (a) regulating the procedure to be followed in connection with applications to Reinstatement Committees and appeals to the umpire or a deputy umpire, fixing the quorum of such Committees, and regulating the circumstances and the manner in which assessors are to be or may be summoned to assist such Committees;
- (b) prescribing any other thing which by this Act is required or authorised to be prescribed.

(2) Any regulations made under this Act shall be laid before Parliament as soon as may be after the making thereof, and if either House of Parliament within forty days from the day on which any such regulations are laid before it resolves that the regulations be annulled, the regulations shall thereupon cease to have effect but without prejudice to anything previously done thereunder or to the making of new regulations.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

- (3) Section one of the Rules Publication Act, 1893, shall not apply to any regulations made under this Act.

56 & 57 Vict.
c. 66.

17.—(1) A certificate of the Minister or the Ministry of Labour for Northern Ireland that a person performed whole-time services in consequence of a direction or request made by him or it or on his or its behalf or as to the date on which a person began or ceased so to perform whole-time services, and a certificate of the competent naval, military or air force authority, the Secretary of State or the Minister of Home Security as to—

Evidence.

- (a) the nature, extent and duration of the service of a person in the armed forces of the Crown or in any of the capacities mentioned in the First Schedule to this Act or in a civil defence force; or
- (b) the purposes for which a person was released or discharged from the armed forces of the Crown, or from service in any such capacity or from a civil defence force,

shall be conclusive for the purposes of any proceedings before, or on appeal from, a Reinstatement Committee.

(2) Every document purporting to be such a certificate as aforesaid or any other certificate authorised by this Act and to be signed by or on behalf of the Minister, the Ministry of Labour for Northern Ireland, the competent

naval, military or air force authority, the Secretary of State or the Minister of Home Security shall be received in evidence, and shall, until the contrary is proved, be deemed to be such a certificate of the Minister, Ministry, authority, Secretary of State or Minister of Home Security, as the case may be; and in any proceedings before, or on appeal from, a Reinstatement Committee, the production of a document purporting to be certified by or on behalf of the Minister, Ministry, authority, Secretary of State or Minister of Home Security, as the case may be, to be a true copy of any such certificate as is mentioned in this subsection shall, unless the contrary is proved, be sufficient evidence of the certificate.

(3) The production, in any proceedings (whether civil or criminal), of a document purporting to be certified by the chairman of a Reinstatement Committee or by the umpire or a deputy umpire to be a true record of a determination or order of the Committee or of the umpire or deputy umpire on appeal, as the case may be, shall, unless the contrary is proved, be sufficient evidence of the determination or order.

(4) Where in any proceedings, whether civil or criminal, brought under this Act against a person for failure to comply with an order of a Reinstatement Committee or of the umpire or a deputy umpire on appeal, proof is given of such an order against a person bearing the name in which the person against whom the proceedings are brought is charged or appears in the proceedings, that order shall, unless the contrary is proved, be deemed to be an order against the person against whom the proceedings are brought.

Priority in
bankruptcy,
winding up,
etc., of sums
ordered to be
paid under
this Act.

4 & 5 Geo. 5.
c. 59.

18.—(1) There shall be included among the debts which, under section thirty-three of the Bankruptcy Act, 1914, are to be paid in priority to all other debts in the distribution of the property of a bankrupt or person dying insolvent, any sum ordered under this Act to be paid by way of compensation where the default by reason of which the order for compensation was made occurred before the receiving order or death, whether or not the order for compensation was made before the receiving order or death.

19 & 20 Geo. 5.
c. 23.

(2) There shall be included among the debts which, under section two hundred and sixty-four of the Companies Act, 1929, are to be paid in priority to all other debts in the winding up of a company, any sum ordered under this Act to be paid by way of compensation where the default by reason of which the order for compensation was made occurred before the relevant date within the meaning of that section, whether or not the order for compensation was made before that date.

(3) Where a receiver is appointed on behalf of the holders of any debentures of a company secured by a floating charge, or possession is taken by or on behalf of those debenture

holders of any property comprised in or subject to the charge, there shall be included among the debts which, under section seventy-eight of the Companies Act, 1929, are to be paid in priority to any claim for principal or interest in respect of the debentures, any sum ordered under this Act to be paid by way of compensation where the default by reason of which the order for compensation was made occurred before the date of the appointment of the receiver or of possession being taken as aforesaid, whether or not the order for compensation was made before that date.

(4) Notwithstanding anything in the three preceding subsections, the sum to which priority is to be given under those subsections respectively shall not in the case of any one claimant exceed fifty pounds.

19. There shall be paid out of moneys provided by Parliament— Expenses.

- (a) to members of Reinstatement Committees, to the umpire and the deputy umpires, to persons appointed to sit as assessors and to any officers and servants of the Minister employed for the purposes of this Act, such remuneration and allowances as the Minister may, with the approval of the Treasury, determine;
- (b) to persons attending as parties or witnesses before Reinstatement Committees or the umpire or any deputy umpire, allowances in accordance with such scales as the Minister may, with the approval of the Treasury, determine;
- (c) any expenses incurred by or on behalf of the Minister in the taking by him or on his behalf of any civil or criminal proceedings under this Act.

20.—(1) In this Act, the following expressions have the Interpretation meanings hereby respectively assigned to them, that is to say:—

- “ the competent naval, military or air force authority ” means the Admiralty, the Army Council or the Air Council or an officer designated by any of them;
- “ the end of the present emergency ” means the date declared by Order in Council under section seven of the Armed Forces (Conditions of Service) Act, 1939, ^{2 & 3 Geo. 6.} to be the date on which the emergency that was the occasion of the passing of that Act came to an end;
- “ the Minister ” means the Minister of Labour and National Service;
- “ undertaking ” includes any business, whether carried on by way of trade or not, and the activities of any body of persons, whether corporate or unincorporated.

(2) Any reference in this Act to the performing of services shall be construed as including a reference to the undergoing of training.

(3) A person who performs whole-time services in consequence of a direction or written request made by or on behalf of the Minister or the Ministry of Labour for Northern Ireland, or performs whole-time services which he was released or discharged to perform, shall not be treated for the purposes of this Act as having ceased to perform those whole-time services by reason of any temporary absence from work.

(4) A period of whole-time service such as is mentioned in subsection (1) of section six of this Act shall not be treated for the purposes of this Act as having ceased by reason—

- (a) of any absence on sick leave; or
- (b) of any other absence on leave, unless it is leave on or pending release or demobilisation, or leave pending discharge; or
- (c) of absence from duty during any such period as is certified by the competent naval, military or air force authority to be a period during which the person in question was prevented by circumstances arising out of war from returning to duty.

(5) For the purposes of this Act, a person who attends for the purpose of entering any of the armed forces of the Crown but who has been notified that he will not be immediately required to take up duty therewith shall not be treated as having entered upon a period of whole-time service until he reports for duty, and any period before he is required for duty during which he is required to attend for purposes connected with his entry into the armed forces of the Crown shall be disregarded.

(6) For the purposes of this Act, a person who is required to report for the purpose of being released, demobilised or discharged shall not, on reporting for that purpose, be treated as entering upon a period of whole-time service.

(7) A member of the Home Guard shall not be treated for the purposes of this Act as entering on a period of whole-time service in the armed forces of the Crown by reason only that the platoon or other part of the Home Guard to which he belongs is mustered for the purpose of resisting an actual or apprehended invasion.

(8) For the purposes of this Act, the Auxiliary Coastguard shall be deemed always to have been part of the armed forces of the Crown.

21.—(1) This Act shall apply to Scotland subject to the Application modifications set out in the subsequent provisions of this to Scotland. section.

(2) For subsection (1) of section eighteen the following subsection shall be substituted:—

“(1) There shall be included among the debts which, under section one hundred and eighteen of the Bankruptcy (Scotland) Act, 1913, are to be paid in priority to all other debts in the division of a bankrupt’s estate, any sum ordered under this Act to be paid by way of compensation where the default by reason of which the order for compensation was made occurred before the date mentioned in subsection (4) of that section, whether or not the order for compensation was made before that date”.

(3) Subsection (3) of section eighteen shall not apply to a company registered in Scotland.

22.—(1) This Act shall apply to Northern Ireland subject to the modifications set out in the subsequent provisions of this section. Application to Northern Ireland.

(2) For subsection (1) of section eighteen there shall be substituted the following subsection:—

“(1) There shall be included among the debts which, under section one of the Preferential Payments in Bankruptcy Act (Northern Ireland), 1933, are to be paid in priority to all other debts in the distribution of the property of a bankrupt, arranging debtor or person dying insolvent, any sum ordered under this Act to be paid by way of compensation where the default by reason of which the order was made occurred before the following date:—

- (a) in the case of a bankrupt, the date of the order of adjudication;
- (b) in the case of an arranging debtor, the date of the filing of the petition for arrangement;
- (c) in the case of a person dying insolvent, the date of his death;

and the said sum shall be so included whether or not the order for compensation was made before the order of adjudication, filing of the petition or date of the death, as the case may be.”

and subsections (2) and (3) of the said section shall have effect as if for references to section two hundred and sixty-four and to section seventy-eight of the Companies Act, 1929, there were respectively substituted references to section two hundred

and thirty-four and to section seventy-six of the Companies Act (Northern Ireland), 1932.

(3) A member of the Ulster Home Guard shall not be treated for the purposes of this Act as entering on a period of whole-time service in the armed forces of the Crown by reason only that such a period as is mentioned in Regulation four of the Defence (Ulster Home Guard) Regulations, 1942, has begun and he becomes accordingly a member of the armed forces of the Crown subject to conditions of service comparable to those prescribed in respect of members of the Home Guard in Great Britain during any period during which the platoon or other part of the Home Guard to which they belong is mustered for the purpose of resisting an actual or apprehended invasion.

(4) The provisions of this Act with respect to the Minister shall be without prejudice to the making of arrangements under section sixty-three of the Government of Ireland Act, 1920, for the exercise and performance of any powers and duties of the Minister by officers of the Ministry of Labour for Northern Ireland on his behalf.

Power to
extend this
Act to the
Isle of Man.

23.—(1) His Majesty may by Order in Council direct that this Act shall extend to the Isle of Man, subject to such modifications and adaptations as may be specified in the Order.

(2) Any such Order in Council may be revoked or varied by a subsequent Order in Council.

Short title,
commence-
ment and
repeals.

24.—(1) This Act may be cited as the Reinstatement in Civil Employment Act, 1944.

(2) This Act shall come into operation on such day as the Minister may by order appoint.

(3) The enactments specified in the Third Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule, and Regulation sixty DAA of the Defence (General) Regulations, 1939, is hereby revoked:

Provided that the powers conferred by subsection (4) of section fourteen of the National Service (Armed Forces) Act, 1939, shall not be affected by the repeal, by virtue of this subsection, of any of the other provisions of that section.

SCHEDULES

FIRST SCHEDULE.

Sections 6, 17.

WOMEN'S SERVICES.

1. Member of Queen Alexandra's Royal Naval Nursing Service or any reserve thereof.
2. Member of the Women's Royal Naval Service.
3. Woman medical practitioner serving in the Royal Navy or any naval reserve.
4. Member of Queen Alexandra's Imperial Military Nursing Service or any reserve thereof.
5. Member of the Territorial Army Nursing Service or any reserve thereof.
6. Member of the Auxiliary Territorial Service.
7. Woman employed with the Royal Army Medical Corps or the Army Dental Corps with relative rank as an officer.
8. Member of Princess Mary's Royal Air Force Nursing Service or any reserve thereof.
9. Member of the Women's Auxiliary Air Force.
10. Woman employed with the Medical Branch or the Dental Branch of the Royal Air Force with relative rank as an officer.
11. Member of the Voluntary Aid Detachments employed under the Admiralty, Army Council or Air Council.

SECOND SCHEDULE.

Section 9.

PROVISIONS APPLICABLE TO ORDERS OF REINSTATEMENT COMMITTEES.

Orders requiring employment to be made available.

1. An order requiring that employment shall be made available to the applicant by his former employer may be made notwithstanding that more than six months have elapsed since the end of the present emergency, and notwithstanding that the date on which employment is to be made available to the applicant is more than six months after the end of the present emergency.
2. Any such order shall be made against the person who is the former employer of the applicant at the time of the making of the order, and accordingly it shall be his duty to secure compliance therewith.

2ND SCH.
—cont.

3. Where the applicant is taken into the employment of his former employer in pursuance of any such order, the provisions of this Act shall have effect in relation to the applicant as if he had been taken into employment in pursuance of the obligation imposed on his former employer by section one of this Act :

Provided that where the applicant has already been in the employment of his former employer for any period since the end of his war service, the period of twenty-six or fifty-two weeks for which, under section four of this Act as applied by this paragraph, the applicant has to be employed shall be correspondingly reduced.

4. Where, in pursuance of any such order, the former employer of the applicant makes employment available to the applicant on the date specified in the order but the applicant is prevented from taking it by his sickness or other reasonable cause, the former employer shall be under the like obligation as he would have been under if the employment had been made available in pursuance of the obligation imposed by section one of this Act :

Provided that, where the date specified in the order as the date on which employment is to be made available is a date after the end of the present emergency, so much of that section as provides that in no case shall the former employer be under an obligation to take the applicant into his employment after six months after the end of the present emergency shall have effect as if for the reference to the end of the present emergency there were substituted a reference to the date so specified.

Orders for compensation.

5. An order for the payment of money by way of compensation shall, in so far as the compensation is in respect of a period subsequent to the order, be made against the person who is the former employer of the applicant at the date of the order, and, in so far as the compensation is in respect of a period before the order, be made against the person who was the former employer during the period of default by reason of which the order was made ; and where different persons have been at different times the former employer of the applicant, the sum payable under the order shall be apportioned by the order between those persons and references in this Act to the person against whom such an order is made shall be construed accordingly.

THIRD SCHEDULE.

Section 24.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
2 & 3 Geo. 6. c. 81.	The National Service (Armed Forces) Act, 1939.	In section fourteen, subsections (1), (2) and (3), and in subsection (4) the words "or to make provision for the prevention of evasion of the provisions of this section":
4 & 5 Geo. 6. c. 15.	The National Service Act, 1941.	In section ten, subsection (1), in subsection (2) the words "'called from his civil employment for service connected with the present emergency' and ", the words "wherever they occur" and the words from "and in subsection (2)" to the end of the subsection, and subsection (3).

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